

Enrollment Promotion Service Agreement

This Enrollment Promotion Service Agreement (the "**Agreement**") is entered into and made effective as of the date of execution by both parties (the "**Effective Date**") by and between:

PARTY A: Phoenix Tree International Sdn. Bhd.

Address: Jalan Forest City 8, Pulau Satu, 81550 Gelang Patah, Johor, Malaysia.

Contact Person: Annie Zhao

Contact Number: +60 197732023

E-mail: annie.zhao@cats-fc.org

And

PARTY B: [Insert Company Name]

Address: [Insert Address]

Contact Person: [Insert Name]

Contact Number: [Insert Number]

E-mail: [Insert Email]

(Party A and Party B may collectively be referred to as the "Parties" and individually as a "Party".)

WHEREAS:

Subject to the qualifications, certificates, corporate profiles, licenses, representations, and warranties duly submitted by Party B to Party A, Party A hereby engages Party B, and Party B agrees to provide enrollment promotion, marketing, and student recruitment publicity services to Party A under the terms and conditions set forth herein.

SECTION I: Party A's Rights and Obligations

1. Provision of Information

Party A shall provide Party B with authentic and accurate school profiles, course descriptions, enrollment brochures, marketing graphics, and admission guidelines

(collectively, the "**Marketing Materials**"). Party A shall ensure the authenticity of its educational commitments. Party B must strictly adhere to the Marketing Materials supplied by Party A during all promotional activities.

2. Admissions Discretion

Party A retains sole and absolute discretion regarding admissions decisions, including acceptance, rejection, grade placement, English support placement, scholarship eligibility, and tuition arrangements.

3. Trademark and Brand Authorization

For the sole purpose of performing this Agreement in good faith, Party A grants Party B a limited, non-exclusive, non-transferable, and revocable license to use Party A's trademarks, brand names, and copywriting materials. Such use must not damage Party A's reputation or disseminate misleading information. Party A may revoke this authorization instantly at its discretion.

4. Teaching Updates

Party A shall promptly notify Party B of any changes regarding academic schedules, class cancellations, postponement of semesters, or filled capacities so that Party B can update its promotional outputs within a reasonable time frame.

SECTION II: PARTY B'S RIGHTS AND OBLIGATIONS

1. Reputation and Compliance

Party B shall safeguard Party A's brand reputation and image during all publicity cycles. Party B warrants that it possesses and shall maintain all necessary valid corporate business licenses and administrative qualifications required by applicable laws to perform the services. Party B shall remain solely liable for the authenticity and legality of its licensing documents.

2. Third-Party Rights and Privacy

Party B warrants that its marketing activities do not infringe upon the intellectual property, copyrights, image rights, data protection, or privacy rights of any third party. Party B shall fully comply with all applicable data protection laws regarding student and parent information.

3. Implementation of Information Updates

Party B shall complete any modifications, updates, or deletions of promotional content within two (2) working days upon receiving written instructions or modified teaching data from Party A.

4. Exclusivity of Promotion Channels

Party B must submit all prospective student leads exclusively through Party A's designated **Approved Promotion Platform**. Leads submitted through any other methods or informal channels will be deemed invalid. A student lead successfully locked into the platform shall remain valid for twelve (12) months from the date of submission.

5. Fee Collection Prohibitions

Party B shall not charge parents or students any fees on behalf of Party A during enrollment publicity and promotional activities. If any violation results in liabilities or disputes—including but not limited to fee refunds, complaints, or legal actions—Party B shall be solely responsible for resolving the matter and bearing all associated costs. In such events, Party A reserves the right to terminate this Agreement immediately.

6. Handling of Application Fees

To facilitate enrollment processing, Party B may guide parents to transfer the standard Application Fee (RM 1,000) exclusively to Party A's designated corporate bank account. Under no circumstances shall Party B:

- **(a)** Collect or intercept the Application Fee through any unauthorized or personal bank accounts; or
- **(b)** Withhold or delay reporting student payment notifications to Party A for more than three (3) working days.

In case of a breach, Party B must immediately remit all collected funds to Party A along with any statutory interest accrued, without prejudice to Party A's right to claim additional damages.

7. Pricing and Promotion Bounds

Party B is authorized to market Party A's programs strictly at the official pricing structures established by Party A, and all matters such as student registration and tuition collection shall be handled by Party A alone. Party B has no authority to alter Party A's tuition fees or payment schedules. Party B may only offer discounts or promotions on its own independently charged service fees.

8. Non-Assignment

Party B shall not transfer, delegate, subcontract, or assign any of its rights or obligations under this Agreement to any third party without the express prior written consent of Party A.

SECTION III: VALID LIST, INVALID LIST, AND PAYMENT PREREQUISITES

Party B's service fee will be calculated on the basis of the conversion effect from of its promotional activities and publicity, which will be reflected in the effective list that meets certain conditions, as follows:

1. Definition of a Valid List

Only students successfully submitted by Party B through the Approved Promotion Platform (defined as the platform designated by Party A, including OpenApply or any successor system as notified by Party A from time to time) shall be eligible for inclusion in the valid list; any referrals or submissions made through any other method or channel shall be deemed null and void.

A student shall be excluded or removed from Party B's valid list in the event that Party A provides evidence (including, without limitation, WeChat/WhatsApp screenshots, electronic mail records, audio recordings, or system screenshots) demonstrating that Party A obtained the student's information through means, channels, or third parties independent of Party B. Party A shall have no obligation to pay Service Fees for any such invalid or unqualified students. In the event that Service Fees have already been paid, Party B shall refund all such amounts to Party A within seven (7) days upon receipt of written notice. Failure by Party B to timely refund the fees shall subject the outstanding balance to interest at a rate of eight percent (8%) per annum, accruing daily from the expiration of the said seven-day period until the date of full and actual payment.

2. Definition of an Invalid List

A student record shall be deemed part of an "Invalid List" if their details match records already existing in Party A's historical database, or if the student was successfully logged on the platform by another party prior to Party B's submission. Party B is responsible for pre-screening students to ensure they meet the academic and visa enrollment policies of Party A. If a student is rejected, fails to complete admissions, or withdraws due to failure to meet admission prerequisites, no service fees shall be recognized.

3. Prerequisites for Service Fee Payment

Party A shall initiate the Service Fee calculation and payment workflow only when all of the following conditions are satisfied in full:

- **Student Registration:** The recommended student has completed all formal enrollment structures required by Party A, obtained official active student status, and actually commenced classes.
- **Fee Payment:** The student has paid a total net cumulative amount to Party A equal to or greater than half (50%) of one full academic year's tuition and mandatory miscellaneous fees, as verified by Party A's financial system.
- **Enrollment Status:** Up to the specific date of the settlement initiation, the student has not submitted a transfer request, withdrawal notification, or

initiated a formal refund process.

- **Settlement Timing:** Once all the above conditions are met, the commission settlement process will officially begin after the student has completed six (6) full weeks of classes.
- **Invoicing:** Party B must issue a legally valid tax invoice to Party A for the exact payable amount verified by Party A.

SECTION IV: FEES, SETTLEMENT, AND TAXES

1. Service Fee Standards

The Service Fees (Commissions) payable to Party B for a student successfully satisfying all criteria in Section III shall be categorized as follows:

- Day Student: MYR 13,000 net per student.
- Boarding Student: MYR 15,000 net per student.

2. Frequency Terms

The Service Fee is a fixed, one-time payment applicable strictly to the student's first academic year of enrollment. Party A shall not owe Party B any subsequent commissions or recurring service fees for any future academic terms or years.

3. Taxation

The Service Fee amounts detailed above are gross pre-tax rates. Any applicable sovereign taxes, including but not limited to Service Tax, Withholding Tax, or other legal duties, shall be borne solely by Party B and deducted dynamically by Party A in compliance with statutory tax codes.

4. Currency and Exchange Rates

All Service Fees shall be formally paid in Malaysian Ringgit (MYR). In the event that Party B requests settlement in an alternative currency, and Party A consents in writing, the conversion rate shall be governed by the official buying exchange rate of MYR against the requested currency on the exact day of remittance.

5. Payment Timeline

Upon absolute satisfaction of the conditions in Section III, Party A shall complete the Service Fee remittance within thirty (30) working days from the date it receives and verifies a valid tax invoice from Party B.

6. Service Fee Refund and Clawback Mechanism

If a student withdraws and receives a tuition refund after the commission has been paid, Party B shall refund or offset the corresponding commission using the following

formula:

Service Fee to be Refunded = Service Fee Paid X (Tuition and Fees Refund/ Total Tuition and Fees Actually Paid)

Party B hereby grants Party A the irrevocable right to deduct such clawback amounts from any future outstanding Service Fees due to Party B

SECTION V: INTELLECTUAL PROPERTY AND CONFIDENTIALITY

1. Confidential Information

Party B shall keep absolute confidentiality regarding all commercial secrets, financial records, student databases, software systems, and operational methodologies of Party A discovered during the performance of this contract. This obligation survives indefinitely post-termination. Party B shall not reproduce, copy, disclose, or use such data for any purpose beyond the scope of this Agreement.

2. Intellectual Property Rights

All copyrights, patents, promotional layout designs, literary works, and trademark variants developed or modified by Party B during the execution of these services shall remain the exclusive and vested property of Party A. Party B is strictly forbidden from using Party A's IP for personal or third-party gains, whether commercial or non-commercial.

SECTION VI: INDEMNITY AND DEFAULT

Any breach of the obligations under this Agreement constitutes a material breach. Party B shall fully indemnify Party A against all actions, proceedings, claims, demands, damages, penalties, costs, charges, and expenses (including, but not limited to, legal fees and disbursements) brought against or incurred by Party A. Furthermore, Party B shall pay liquidated damages to Party A equivalent to 50% of the total service fee payable for the relevant academic year within seven (7) days of receiving notice. Failing this, Party B shall pay interest on the outstanding amount at a rate of eight percent (8%) per annum, calculated daily from the expiry of the seven-day period until the date of full payment. If the liquidated damages do not fully cover Party A's actual losses, Party B shall make up the shortfall.

SECTION VII: ANTI-COMMERCIAL BRIBERY

Party B warrants that it will not directly or indirectly request, promise, or deliver any unlawful kickbacks, financial benefits, secret commissions, excessive entertainment, or gifts to Party A's employees, agents, or affiliates. Any breach of this clause constitutes an irremediable material breach. Party A may terminate this Agreement

immediately, withhold any pending service fees, and demand a full refund of all historic fees paid to Party B, alongside filing reporting petitions to law enforcement.

SECTION VIII: TERMINATION OF AGREEMENT

1. Immediate Termination by Party A

Party A may immediately terminate this Agreement via written notice if Party B:

- Becomes insolvent, enters liquidation, files for bankruptcy, or initiates asset debt arrangements with creditors.
- Acts in a manner that damages the public reputation, branding, or operational licenses of Party A.
- Fails to remedy a curable breach of contract within seven (7) days after receiving a notice of default from Party A.

2. Convenience Termination

Party A may terminate this Agreement at any time, without cause, by providing Party B with thirty (30) days' advance written notice.

3. Statutory Intervention

If national educational laws, regulations, or migration policies shift such that this Agreement can no longer legally operate, the Parties shall negotiate amendments in good faith or mutually terminate the contract without liability.

SECTION IX: MISCELLANEOUS PROVISIONS

1. Data Protection Consent

The Parties consent to processing and disclosing personal data (names, identification documents, contact numbers, academic profiles) necessary to fulfill this contract, provided that all processing complies with standard statutory personal data privacy acts.

2. Entire Agreement and Amendments

This Agreement contains the full understanding of the Parties regarding its subject matter and supersedes all prior letters of intent, oral negotiations, or memoranda. Any modifications or supplementary agreements must be executed in writing and signed by authorized representatives of both Parties.

3. No Waiver and Time of Essence

No failure or delay by either Party to exercise any right under this Agreement shall operate as a waiver thereof. Time is of the essence in all performance metrics stated herein.

4. Governing Law and Dispute Resolution

This Agreement shall be governed by, construed, and enforced in accordance with the **laws of Malaysia**. In the event of a dispute arising from the interpretation or performance of this Agreement, the Parties shall attempt amicable resolution via executive negotiation. If negotiations fail, the Parties submit to the exclusive jurisdiction of the **courts in the state of Johor, Malaysia**.

5. Execution

This Agreement is executed in two (2) identical original copies, with each Party retaining one (1) copy. It shall come into full force on the date of execution and remain valid until **August 31, 2027**, unless terminated earlier in accordance with its provisions.

(The remainder of this page is intentionally left blank. The signature page follows.)

PARTY A:	PARTY B:
Phoenix Tree International Sdn. Bhd.	[Insert Company Name]
Authorized Representative Signature	Authorized Representative Signature
Name:	Name:
Title:	Title:
Date:	Date: